

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Murgio	Team: Squad #02	CCRB Case #: 202007347	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/05/2020 8:30 PM	Location of Incident: Sheffield Avenue and Cozine Avenue	18 Mo. SOL 5/5/2022	Precinct: 75		
Date/Time CV Reported Fri, 11/06/2020 6:31 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 11/06/2020 6:31 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Sergio Castillo	03818	964429	075 PCT
2. PO Joseph Reyes	01060	955373	075 PCT
3. PO Lester Haynes	07304	954922	075 PCT
4. SGT Vincent Calderone	00000	936038	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sean Collins	29210	954654	075 PCT
2. PO Warren Hutchinson	21648	954952	075 PCT
3. PO Michael Amello	17857	949999	075 PCT
4. PO Christopher Bracco	08029	963410	075 PCT
5. PO Alec Solomito	03561	964782	075 PCT
6. PO Vincent Peluso	06954	966264	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Sergio Castillo	Abuse: Police Officer Sergio Castillo questioned § 87(2)(b)	A . Exonerated
B . PO Sergio Castillo	Abuse: Police Officer Sergio Castillo stopped § 87(2)(b)	B . Unsubstantiated
C . PO Sergio Castillo	Abuse: Police Officer Sergio Castillo frisked § 87(2)(b)	C . Unsubstantiated
D . SGT Vincent Calderone	Abuse: Sergeant Vincent Calderone frisked § 87(2)(b)	D . Unsubstantiated
E . PO Sergio Castillo	Abuse: Police Officer Sergio Castillo searched § 87(2)(b)	E . Unsubstantiated
F . SGT Vincent Calderone	Abuse: Sergeant Vincent Calderone searched § 87(2)(b)	F . Unsubstantiated
G . PO Lester Haynes	Abuse: Police Officer Lester Haynes searched the vehicle in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . PO Joseph Reyes	Abuse: Police Officer Joseph Reyes searched the vehicle in which § 87(2)(b) was an occupant.	H . Unsubstantiated
I . SGT Vincent Calderone	Abuse: Sergeant Vincent Calderone searched the vehicle in which § 87(2)(b) was an occupant.	I . Unsubstantiated

Case Summary

On November 6, 2020, § 87(2)(b) filed this complaint with the CCRB via the call processing system. The case was initially assigned to Inv. Kenneth Shelton and was reassigned to Inv. Rachel Murgio on May 24, 2021, after Inv. Shelton left the agency.

On November 5, 2020, at approximately 8:30 p.m., § 87(2)(b) was sitting in his car, which was parked near the intersection of Sheffield Avenue and Cozine Avenue in Brooklyn. Police Officer Sergio Castillo, Police Officer Lester Haynes, and Police Officer Joseph Reyes of the 75th Precinct arrived in an unmarked vehicle and approached § 87(2)(b)'s vehicle. Police Officer Castillo then asked § 87(2)(b) to roll down his window so that they could speak to him, and then asked him whether he lived in the area (**Allegation A: Abuse of Authority – Question – Exonerated**). After § 87(2)(b) rolled down his car's window, Police Officer Castillo mentioned that he smelled marijuana, asked § 87(2)(b) whether he had been smoking marijuana, and asked § 87(2)(b) to step out of his car (**Allegation B: Abuse of Authority – Stop – Unsubstantiated**). § 87(2)(b) initially refused to exit his vehicle and called 911. Additional officers arrived, including Sergeant Vincent Calderone of the 75th Precinct. Once § 87(2)(b) exited his car, Police Officer Castillo frisked and searched him (**Allegations C and D: Abuse of Authority – Frisk – Unsubstantiated** and **Allegations E and F: Abuse of Authority – Search (of person) – Unsubstantiated**). Police Officer Haynes and Police Officer Reyes searched § 87(2)(b)'s car (**Allegations G, H, and I: Abuse of Authority – Vehicle search – Unsubstantiated**). § 87(2)(b) was then allowed to leave without being summonsed or arrested.

Body-worn camera (BWC) footage from the cameras of Police Officer Reyes, Police Officer Castillo, and Police Officer Haynes can be found in IAs #19-21 (Board Review 01-03) and is summarized in IA #32 (Board Review 04). BWC footage from the cameras of Sergeant Calderone, Police Officer Michael Amello, Police Officer Christopher Bracco, Police Officer Alec Solomito, Police Officer Sean Collins, Police Officer Vincent Peluso, and Police Officer Warren Hutchinson (all of the 75th Precinct) is linked to IAs #56-62 (Board Review 05-11) and summarized in IA #63 (Board Review 12).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sergio Castillo questioned § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB via telephone on December 2, 2020 (Board Review 13). Police Officer Hutchinson was interviewed by the CCRB on January 6, 2022 (Board Review 14). Sergeant Calderone was interviewed by the CCRB on January 11, 2022 (Board Review 15). Police Officer Castillo was interviewed by the CCRB on January 13, 2022 (Board Review 16).

It is undisputed that Police Officer Castillo, Police Officer Haynes, and Police Officer Reyes approached § 87(2)(b) while § 87(2)(b) was sitting in his car, which was parked by itself in a relatively deserted area.

Police Officer Castillo stated that the area where § 87(2)(b) was parked was known to officers to be prone to drug, gang, and prostitution issues. They approached § 87(2)(b)'s car because they noticed that his windows were tinted and they wanted to see if there were any sex workers or underage females in the vehicle, given its location and the fact that it was in an isolated area.

Body-worn camera (BWC) captured by Police Officer Reyes (IA #19, beginning at approximately the 1:00 timestamp and particularly clearly at the 1:25 timestamp) shows that the rear side windows

of § 87(2)(b)'s minivan are tinted, though the windshield and the front side windows do not appear to be (Board Review 01). Footage from Police Officer Castillo's BWC (Board Review 02) shows that, at 1 minute 3 seconds into the video, as he reaches § 87(2)(b)'s driver side window, which is rolled up fully he says, "Can I talk to you? You good?" It is unclear whether, and what, § 87(2)(b) responds. Police Officer Castillo then says, "Can't hear you. Can't hear you. Can you bring your window down?" After § 87(2)(b) rolls the window down a few inches, Police Officer Castillo asks, "What's going on, man, you good? You live around here?"

New York State VTL 375-12A does not prohibit tints in the rear window of a vehicle with side mirrors on both sides of the vehicle that are adjusted to provide a clear and full view of the road and condition of traffic behind the vehicle. It also does not prohibit tints in the side windows of a minivan that are located behind the driver (Board Review 21).

People v. De Bour, 40 N.Y.2d 210 establishes that officers may approach a civilian for the purpose of requesting information if they have an objective, credible reason to do so (Board Review 22).

Patrol Guide Procedure 212-11 also instructs officers that they may approach a civilian to request information if they have an objective, credible reason to do so. It defines an objective credible reason as one based on more than a hunch or a whim. The reason to gather more information may relate to a public safety/service function or a law enforcement function but need not be based on any indication of criminality and does not require any suspicion of criminal activity. The objective is to gather information and not to focus on the person as a potential suspect. A police officer may seek information related to the reason the person was approached, such as the person's name, address, and destination, if those questions are related to the objective credible reason for the approach. (Board Review 23).

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b) It is therefore recommended that **Allegation A** be **exonerated**.

Allegation (B) Abuse of Authority: Police Officer Sergio Castillo stopped § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Sergio Castillo frisked § 87(2)(b)
Allegation (D) Abuse of Authority: Sergeant Vincent Calderone frisked § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Sergio Castillo searched § 87(2)(b)
Allegation (F) Abuse of Authority: Sergeant Vincent Calderone searched § 87(2)(b)
Allegation (G) Abuse of Authority: Police Officer Lester Haynes searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (H) Abuse of Authority: Police Officer Joseph Reyes searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (I) Abuse of Authority: Sergeant Vincent Calderone searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Police Officer Castillo asked § 87(2)(b) to exit his car, and that, under the supervision of Sergeant Calderone, Police Officer Castillo frisked and searched § 87(2)(b) before Police Officer Haynes and Police Officer Reyes searched § 87(2)(b)'s vehicle.

§ 87(2)(b) denied smoking marijuana in his car before officers arrived. He testified that he does not smoke marijuana in his car in general.

Police Officer Castillo testified that when he approached § 87(2)(b)'s car to request information, § 87(2)(b) was "uncooperative" and did not listen to Police Officer Castillo's instructions. When § 87(2)(b) opened his window, Police Officer Castillo smelled an odor of marijuana emanating from the vehicle.

Sergeant Calderone testified that when he arrived at the scene of the incident, officers informed him that § 87(2)(b) was being noncompliant and refusing to exit his vehicle. He was also informed, possibly by Police Officer Reyes, that the officers had smelled an odor of marijuana and wanted to search § 87(2)(b) and his car for marijuana. Sergeant Calderone did not recall whether he ever detected the odor of marijuana himself.

BWC footage from Police Officer Castillo's BWC (Board Review 02) shows Police Officer Castillo asking § 87(2)(b) at timestamp 1:21, after he rolls down the window of his car, if he is smoking marijuana. § 87(2)(b)'s response is not clearly captured. At timestamp 6:45, Police Officer Castillo states that "the car smells like marijuana," and at 7:56, Police Officer Castillo tells § 87(2)(b) that once he opened his window, it smelled like marijuana.

People v. Chestnut, 43 A.D.2d 260 (1974) established that the smell of marijuana smoke emanating from a defendant's automobile is sufficient to provide officers with probable cause to search the vehicle and the defendant (Board Review 19).

In People v Norman, 142 A.D.3d 1107 (2016), the court ruled that the probable cause conferred to officers by the odor of marijuana emitting from a vehicle, which allows them to search that vehicle and its occupants, also applies to parked vehicles (Board Review 24).

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) It is therefore recommended that **Allegations B, C, D, E, F, G, H, and I** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one additional CCRB complaint and has been named as a victim in six additional allegations (Board Review 17).
 - § 87(2)(b)
- Police Officer Castillo has been a member of the service for four years and has been a subject in seven additional cases and 27 additional allegations, none of which have been substantiated. § 87(2)(g)
- Police Officer Haynes has been a member of the service for eight years and has been a subject in six additional cases and 14 additional allegations, none of which have been substantiated. § 87(2)(g)
- Police Officer Reyes has been a member of the service for eight years and has been a subject in nine additional cases and 28 additional allegations, of which one was substantiated.

- 201708175 involved a substantiated allegation of a stop. The Board recommended charges and the NYPD imposed forfeiture of three vacation days. § 87(2)(g)
- Sergeant Calderone has been a member of the service for 17 years and has been a subject in eight additional cases and fourteen additional allegations, of which one has been substantiated.
 - 200609865 involved a substantiated allegation of refusal to process a civilian complaint. The Board recommended charges and the NYPD imposed instruction. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(g)
- As of November 9, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 18)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator: <u>Rachel Murgio</u>	<u>Inv. Rachel Murgio</u>	
<u>02/14/2022</u>		
Signature	Print Title & Name	Date

Squad Leader: <u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>02/14/2022</u>
Signature	Print Title & Name	Date

Reviewer: _____		
Signature	Print Title & Name	Date